CMA Board Approval: 04/13/2024
Effective Date: 06/01/2024

# COOLFONT MOUNTAINSIDE ASSOCIATION
# POLICY RESOLUTION 2024-03
# RESALE COMPLIANCE POLICY

This Resolution and Procedural Rule for Compliance With Lot Resale Disclosure Requirements (Resale Compliance Policy) is made and adopted by the Board of Directors of Coolfont Mountainside Association, Inc., on this 13th day of April 2024, for the following purposes in the following words and figures.

## Authority

**WHEREAS**, the Coolfont Development was established by a Declaration of Covenants and Restrictions dated the 13th day of December 1968 and recorded in the Office of the Clerk of the County Commission of Morgan County in Deed Book 217 at page 666, and

**WHEREAS**, Coolfont is a "Planned Community" within the meaning of West Virginia Code Chapter 36B, ("the Act") and as a Planned Community established prior to the enactment of Chapter 36B of the Code, it constitutes a pre-existing planned community governed by the provisions of Article 1 Section 204, and Article 4, Section 109, of the Act, and

**WHEREAS**, Article 4, Section 109 of the Act requires the owners of lots in Coolfont to provide a declaration or certificate disclosing certain information prior to execution of a contract for the sale of their lot, and

**WHEREAS**, upon request by such owner, the Association is required to provide the owner with a "certificate" containing the information necessary for the lot owner to comply with said disclosure,

**NOW THEREFORE**, the Board of Directors adopts this Resolution for the purpose of performing the Association's duties under the Act pertaining to the resales of lots.

## Resolution

Within ten (10) days of a request from a lot owner, the Association will provide any lot owner information on how to obtain said information from the Association's contractor, or provide the information directly to the owner. The fee for providing said information is hereby established in the CMA Schedule of Fees, Fines, and Charges and shall be paid in full prior to providing the requested information.

This Resolution was duly passed by a majority vote of the Board of Directors at a duly called meeting on this 13th day of April 2024.

# COOLFONT MOUNTAINSIDE ASSOCIATION
# POLICY RESOLUTION 2024-03 ACTION RECORD

Duly adopted at a meeting of the Board of Directors held: April 13, 2024

Motion by: Dawne Holz  Seconded by: Valerie Creason

## VOTE:

| | YES | NO | ABSTAIN | ABSENT |
|---|---|---|---|---|
| Steve Katz, President | X | | | |
| Norm Rosenberg, Vice President | | | | X |
| Dawne Holz, Treasurer | X | | | |
| Valerie Creason, Secretary | X | | | |
| Anna Connolly, Director | | | | X |
| Dave Creason, Director | X | | | |
| John Wennersten, Director | X | | | |

## ATTEST:

Valerie Lm Creason  04/22/2024

Secretary  Date

Resolution effective date: 06/01/2024

Morgan County
Kimberly Nickles, Clerk
Instrument 903981
05/21/2024 @ 11:08:30 AM
COVENANTS, RESTRICTIONS, ARTIC
Book 295 @ Page 689
Pages Recorded 2
Recording Cost $ 12.00

CMA Board Approval: 04/13/2024
Effective Date: 06/01/2024

689

# COOLFONT MOUNTAINSIDE ASSOCIATION
# POLICY RESOLUTION 2024-03
# RESALE COMPLIANCE POLICY

This Resolution and Procedural Rule for Compliance With Lot Resale Disclosure Requirements (Resale Compliance Policy) is made and adopted by the Board of Directors of Coolfont Mountainside Association, Inc., on this 13th day of April 2024, for the following purposes in the following words and figures.

## Authority

**WHEREAS**, the Coolfont Development was established by a Declaration of Covenants and Restrictions dated the 13th day of December 1968 and recorded in the Office of the Clerk of the County Commission of Morgan County in Deed Book 217 at page 666, and

**WHEREAS**, Coolfont is a "Planned Community" within the meaning of West Virginia Code Chapter 36B, ("the Act") and as a Planned Community established prior to the enactment of Chapter 36B of the Code, it constitutes a pre-existing planned community governed by the provisions of Article 1 Section 204, and Article 4, Section 109, of the Act, and

**WHEREAS**, Article 4, Section 109 of the Act requires the owners of lots in Coolfont to provide a declaration or certificate disclosing certain information prior to execution of a contract for the sale of their lot, and

**WHEREAS**, upon request by such owner, the Association is required to provide the owner with a "certificate" containing the information necessary for the lot owner to comply with said disclosure,

**NOW THEREFORE**, the Board of Directors adopts this Resolution for the purpose of performing the Association's duties under the Act pertaining to the resales of lots.

## Resolution

Within ten (10) days of a request from a lot owner, the Association will provide any lot owner information on how to obtain said information from the Association's contractor, or provide the information directly to the owner. The fee for providing said information is hereby established in the CMA Schedule of Fee, Fines, and Charges and shall be paid in full prior to providing the requested information.

This Resolution was duly passed by a majority vote of the Board of Directors at a duly called meeting on this 13th day of April 2024.

COOLFONT MOUNTAINSIDE ASSOCIATION
21321 HIDDEN POND PLACE
BROADLANDS VA 20148-4022